THE PUNJAB CHILD MARRIAGE RESTRAINT ACT 2026

(Act XXVII of 2026)

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[1]THE PUNJAB CHILD MARRIAGE RESTRAINT ACT 2026

(Act XXVII of 2026)

[11 May 2026]

An Act to restrain the solemnization of child marriages in the Punjab.

It is necessary to restrain the solemnization of child marriages in the Punjab and to provide for the matters connected therewith and ancillary thereto.

It is hereby enacted by Provincial Assembly of the Punjab as follows:

1. Short title, extent and commencement.– (1) This Act may be cited as the Punjab Child Marriage Restraint Act 2026.

(2) It extends to whole of the Punjab.

(3) It shall come into force at once.

2. Definitions.– In the Act:

(a) "Act" means the Punjab Child Marriage Restraint Act 2026;

(b) "best interests of the child" means the child's well-being and holistic development, including safety, health, education, dignity, identity and protection from abuse, exploitation and harmful practices, to be assessed in the light of the child's age and evolving capacities;

(c) "child" means a person, male or female, who is under eighteen years of age;

(d) "child marriage" means an act of *Nikah* or solemnizing a marriage where both or either of the contracting parties is a child;

(e) "Code" means the Code of Criminal Procedure, 1898 (V of 1898);

(f) "contracting party" means either of the parties whose *Nikah* or marriage is, or about to be, performed or solemnized;

(g) "Court" means the Court of Sessions as provided under the Code;

(h) "Government" means Government of the Punjab; and

(i) "guardian" means a natural guardian or a guardian appointed under the Guardians and Wards Act, 1890 (VIII of 1890).

3. Registration of child marriages.– (1) No *Nikah* registrar shall register a child marriage.

(2) Whoever contravenes the provision of sub-section (1), shall be liable to be punished with simple imprisonment for a term which may extend to one year and with fine of one hundred thousand rupees.

4. Punishment for marrying a child.– Whoever, being an adult above eighteen years of age, contracts a marriage with a child, shall be punished with rigorous imprisonment which may extend to three years but shall not be less than two years and shall be liable to fine which may extend to five hundred thousand rupees.

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[1]This Act was passed by Provincial Assembly of the Punjab on 27 April 2026; assented to by Governor of the Punjab on 11 May 2026; and was published on the same day in the Punjab Gazette (Extraordinary) at pages 5907-10.

5. Child abuse and its punishment.– (1) Any form of cohabitation, before attaining the age of eighteen years, with or without consent, resulting from a child marriage shall be the child abuse under the Act.

(2) Any person who induces, forces, persuades, entices or coerces any child bride or child groom to engage in child abuse or commits child abuse shall be punished with imprisonment for a term which may extend to seven years but shall not be less than five years and with fine which shall not be less than one million rupees.

6. Child trafficking and its punishment.– (1) Any person who induces, forces, persuades, entices, compels or coerces any child to leave, or takes such child beyond the territorial boundary of the Punjab for the purpose of defeating and evading the provisions of the Act for child marriage, shall commit the offence of child trafficking, and shall be punished with imprisonment which may extend to seven years but shall not be less than five years and with fine which may extend to one million rupees.

(2) Any person who recruits, harbours, transports, provides or obtains any child for the purpose of child trafficking shall commit an offence under the Act which shall be punished with imprisonment which may extend to three years and with fine which may extend to five hundred thousand rupees.

7. Punishment for guardian involved in a child marriage.– Where a guardian or any other person in any capacity, lawful or unlawful, does any act to promote a child marriage, child abuse or permits a child marriage to be solemnized, or intentionally or negligently fails to prevent it from being solemnized, shall be punished with rigorous imprisonment which may extend to three years but shall not be less than two years, and shall also be liable to fine which may extend to five hundred thousand rupees.

8. Jurisdiction under the Act.– Notwithstanding anything contained in section 190 of the Code, no court other than the Court of Sessions shall take cognizance of or try any offence under the Act.

9. Power to issue injunction.– (1) Notwithstanding anything to the contrary contained in any other law, the Court may, if satisfied with the information laid before it through an application that a child marriage is going to be arranged, issue an injunction:

Provided that where the person who has laid the information before the Court, requests to keep his identity hidden from the contracting parties or from the parent or guardian of the contracting parties or other parent, the Court shall adopt appropriate measures to protect the identity of such person.

(2) No injunction under sub-section (1) shall be issued against any person unless the Court has previously given notice to such person, and has afforded him an opportunity to show cause against the issuance of the injunction:

Provided that the Court may dispense with such notice if it deems necessary.

(3) The Court may, either on its own motion or on an application of any person, rescind or alter any order made under sub-section (1).

(4) Where an application under sub-section (3) is received, the Court shall afford an opportunity for the applicant to appear before it either in person or by a pleader, and if the Court rejects the application wholly or in part, it shall record in writing the reasons thereof.

(5) Whoever, knowing that an injunction has been issued against him under sub-section (1), disobeys such injunction, shall be punished with imprisonment for a term which may extend to one year or fine which may extend to one hundred thousand rupees or with both.

10. Offences to be non-bailable.– Notwithstanding anything contained in the Code, an offence punishable under the Act shall be cognizable, non-bailable and non-compoundable.

11. Trial of offences.– The Court shall, on taking cognizance of a case under the Act, proceed with the trial and conclude it within ninety days.

12. Applicability of the Code.– Subject to the provisions of the Act, the provisions of the Code shall *mutatis mutandis* apply.

13. Best interests of the child.– (1) In all actions and decisions taken under this Act, including prevention, investigation, prosecution, bail, sentencing and protective injunctions, the best interests of the child shall be a primary consideration.

(2) For the purposes of sub-section (1), the Court shall consider:

(a) the child's safety and protection from violence, intimidation, retaliation and social stigma;

(b) the child's physical and mental health, including risks arising from cohabitation or pregnancy:

(c) the child's right to education and development, and future opportunities;

(d) the child's views, having regard to age and evolving capacities;

(e) immediate protective needs, including safe shelter and supervised custody where required; and

(f) any other factor necessary to secure the child's dignity, autonomy and welfare.

(3) No child shall be treated as an offender merely by reason of being a contracting party to a child marriage.

(4) In any proceedings under this Act where a contracting party who is a child has been taken, enticed, induced, coerced, trafficked or otherwise removed from lawful guardianship for the purpose of marriage, the Court shall not treat the mere statement or purported consent of such child to reside with or accompany the adult contracting party as determinative of custody, residence or protective orders.

(5) In cases under this Act, the Court shall conduct an independent and reasoned assessment of the child's safety, welfare and best interests, having regard to:

(a) the circumstances in which the child was removed or taken;

(b) any element of coercion, undue influence, intimidation, deception, grooming or abuse;

(c) the age, vulnerability and evolving capacity of the child;

(d) the likelihood of continued harm, exploitation or retaliation; and

(e) the necessity of protective custody, safe shelter, counseling or supervised arrangements.

(6) No finding of voluntary consent by a child shall, by itself defeat the protective jurisdiction of the Court under this Act.

(7) The Court shall prioritize the physical safety, mental well-being, dignity, education and long-term development of the child over any claim based on marital status, customary practice or alleged consent.

(8) The Government may, by rules, prescribe child-friendly procedures for recording statements and providing protection and support services to a child in proceedings under this Act.

14. Power to make rules.– The Government may, by notification in the official Gazette, make rules for carrying out the purposes of the Act.

15. Repeal and saving.– (1) The Child Marriage Restraint Act, 1929 (XIX of 1929) and the Punjab Child Marriage Restraint Ordinance 2026 (I of 2026) are hereby repealed.

(2) All orders made and decisions taken under the repealed Act and repealed Ordinance, shall be deemed to have been validly made and taken under the Act.